

["since it does appear that the full extent of plaintiffs' damages cannot be determined until the resolution of the pending litigation, the trial court has the inherent authority to stay this action pending that event."] [citation omitted].)

Because the Court grants the motion to stay, the pending motion to strike is off calendar.

A status conference to address the status of the stay and the underlying case is scheduled for March 6, 2026, at 8:30 a.m.

13. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE JUDGMENT AGREEMENT ENTERED UNDER DURESS**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant Adonica Shaw moves to set aside a judgment entered in an unlawful detainer as the result of a settlement. The settlement, entered July 11, 2025, provided that she would pay back rent and other costs of \$15,443.89, and could remain in possession until September 13, 2025.

The proceeding in question was a court trial, which was preceded by a voluntary settlement conference with a third-party mediator provided by the court. Defendant contends that Plaintiff was represented at the hearing by an attorney for the plaintiff who had not made any formal written appearance. She moves to set aside judgment on the ground it was obtained by "fraud, duress, or other improper means." Specifically, she claims that "this unauthorized representative attempted to strong-arm the defendant into a judgment or agreement without proper notice or opportunity for consultation."

Defendant anticipated the appearance of Christopher Rosseau, the attorney of record. Instead, a different attorney (Jacqueline Prisbylla) from the same firm (Kimbal, Tirey & St. John LLP), appeared. There was no prior or written notice of this "change." Defendant objects to some of the questions asked by Mr. Prisbylla. She further states that "Fearing imminent eviction of myself and my children, I signed the settlement agreement drafted by Ms. Prisbylla. My signature was not a free, knowing, or intelligent assent."

A third-party mediator, Deborah Levy, was present throughout the mediation.

As to the issue of plaintiff's attorney, once a law firm appears on behalf of a client, any attorney from that firm may appear in the case without need of a substitution of counsel. (*Raskin v. Superior Court* (1934) 138 Cal.App. 668, 670, 33 P.2d 35.) Thus, Ms. Prisbylla's appearance was not a "change" in attorneys, which would require compliance with Code of Civil Procedure section 284 and 285.

The fact that defendant was without counsel does not render the judgment improper.

Given the summary nature of unlawful detainer proceedings, defendant may indeed have faced the imminent prospect of losing her home. This is common in unlawful detainer proceedings, and does not by itself render any settlement unlawful or fraudulent, nor does it vitiate defendant's consent.

The circumstances of the agreement, even as set forth by defendant, do not set forth fraud, duress, or other improper means sufficient to permit setting aside the judgment. The motion is **denied**.

14. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FOR SANCTIONS**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant seeks sanctions from plaintiff, largely on the grounds stated in her motion to set aside the judgment. For the reasons explained in denying the motion to set aside the judgment, the motion for sanctions is **denied**.

15. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FOR LEAVE TO FILE CROSS-COMPLAINT**
FILED BY: SHAW, ADONICA
TENTATIVE RULING:

Defendant moves for leave to file a cross-complaint.

A cross-complaint is generally not permitted in an unlawful detainer. (*Vella v. Hudgins* (1977) 20 Cal. 3d. 251, 255.) Defendant relies on cases that state that after a tenant vacates the premises, they may seek affirmative relief that otherwise would not have been available in an unlawful detainer proceeding. (*Duncan v. Kihagi* (2023) 96 Cal.App.5th 703, 709.) In this case, however, the removal of possession as an issue was accomplished through entry of a final judgment in the entire case. Moreover, where a cross-complaint is permitted, “[l]eave may be granted in the interest of justice at any time *during the course of the action*.” (CCP § 428.50, emphasis added.) Because final judgment has been entered, it is no longer “in the course of the action.”

16. 9:00 AM CASE NUMBER: MS25-0449
CASE NAME: CSCDA COMMUNITY IMPROVEMENT AUTHORITY VS. ADONICA SHAW
***HEARING ON MOTION IN RE: MOTION FILED TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET ONE**
FILED BY:
TENTATIVE RULING:

Defendant seeks to compel responses to a set of Requests for Production of Document. The requests were served on July 31, 2025. Judgment was entered (by stipulation) on July 11, 2025. Defendant argues the discovery is relevant to determining that the three-day notice to pay rent or quit was never properly served. Defendant argues that the discovery is relevant to her proposed cross-complaint. The motion for leave to file a cross-complaint has been denied, however. Thus, the discovery in question is not directed at any claim presently before the Court. Moreover, the motion to compel production was filed on July 31, 2025, the same day the discovery requests were served. Thus, the **motion was filed too early**.